

BEFORE THE FEDERAL MARITIME COMMISSION

INTERMODAL MOTOR CARRIERS CONFERENCE,
AMERICAN TRUCKING ASSOCIATIONS, INC.

Complainant,

v.

OCEAN CARRIER EQUIPMENT MANAGEMENT
ASSOCIATION, INC., CONSOLIDATED CHASSIS
MANAGEMENT, LLC, CMA CGM S.A., COSCO
SHIPPING LINES CO. LTD., EVERGREEN LINE
JOINT SERVICE AGREEMENT, FMC NO. 011982,
HAPAG-LLOYD AG, HMM CO. LTD., MAERSK
A/S, MSC MEDITERRANEAN SHIPPING
COMPANY S.A., OCEAN NETWORK EXPRESS
PTE. LTD., WAN HAI LINES LTD., YANG MING
MARINE TRANSPORT CORP., AND ZIM
INTEGRATED SHIPPING SERVICES,

Respondents.

FMC Docket No. 20-14

COMPLAINANT’S MOTION TO
COMPEL DISCOVERY FROM
RESPONDENTS MSC
MEDITERRANEAN SHIPPING
COMPANY S.A., ZIM
INTEGRATED SHIPPING
SERVICES, COSCO SHIPPING
LINES CO LTD., AND WAN HAI
LINES LTD., AND FOR
SANCTIONS AND OPPOSITION
OF MOTION REPONDENTS¹

Complainant Intermodal Motor Carriers Conference, American Trucking Associations, Inc. (“IMCC”) moves to compel immediate production of documents from Respondents MSC Mediterranean Shipping Company S.A. (“MSC”), ZIM Integrated Shipping Services (“ZIM”), COSCO Shipping Lines Co. Ltd. (“COSCO”), and Wan Hai Lines Ltd. (“Wan Hai”), who have not produced a single document since the April priority document production date and who failed to meet the September 3 deadline to complete document production (collectively “the non-producing Respondents”). 46 C.F.R. §502.150. In the interests of “proceed[ing] expeditiously,” Scheduling Order (Mar. 4, 2021) at 2, particularly as depositions are scheduled to begin in

¹ As directed in Paragraph 11 of the Initial Order dated July 30, 2020, MSC Mediterranean Shipping Company S.A., ZIM Integrated Shipping Services, COSCO Shipping Lines Co. Ltd., and Wan Hai Lines Ltd. (collectively, the “Motion Respondents”) have inserted their counter arguments into the original motion and, for ease of reference, have highlighted their inserts in yellow.

thirteen days, IMCC now brings the dispute to the Presiding Officer and respectfully requests that this Motion be immediately addressed and granted, and that these non-producing Respondents be ordered to cure all deficiencies in their productions within three (3) days of receipt of notice by email. IMCC further requests that the Presiding Officer order that the non-producing Respondents pay IMCC's attorneys' fees and costs associated with preparing this Motion and the supporting papers. 46 C.F.R. § 502.150(b).

Motion Respondents' Counter Statement

For the reasons explained below, additional time is needed by the Motion Respondents to complete their review and production of documents responsive to the Complainant's broad discovery requests. In addition, as set forth in Respondents' accompanying Cross Motion for Extension of the Scheduling Order, all Respondents request an extension of time to complete document production on the grounds that (1) additional time is needed to obtain, or compel, production of responsive documents from the subpoenaed non-party IMCC members ("IMCC Members") who did not respond or who responded inadequately to Respondents' discovery requests; and (2) to analyze the substantial quantity of documents produced by three of the subpoenaed IMCC Members just prior to the scheduled end of document production which, in total, amount to approximately one million pages.

I. FACTS

Complainant's Statement:

IMCC filed its Complaint on August 17, 2020. Dkt.1. In anticipation of the accelerated litigation schedule imposed by the FMC Rules of Practice & Procedure ("FMC Rules"), and although dispositive motions then were pending before the Presiding Officer, IMCC served its first set of document requests on the non-producing Respondents on October 14, 2020. Golden

Decl.² ¶ 5. IMCC listed a return date of 30 days after the filing of Respondents' Answers, i.e. March 22, 2021. First Joint Status Report ("First JSR") (Mar. 1, 2021) at 1. The Presiding Officer denied Respondents' dispositive motions, Dkt. 17, 24. Respondents filed their Answers on February 18, 2021. Dkt. 25-37.

The Parties collectively conferred and agreed to a schedule that the Presiding Officer incorporated into the initial Scheduling Order. First Scheduling Order, Dkt. 40 (Mar. 4, 2021). Pursuant to that Order, the Parties mutually exchanged production of "priority documents" in April 2021. *Id.* at 2. The Parties further agreed to complete document production by June 1, 2021, and to produce documents on a "rolling" basis to enable the parties to comply with the accelerated schedule for this proceeding and to facilitate an orderly and timely transition into fact depositions. *Id.* Given the significant burden of document discovery, Respondents proposed (and IMCC agreed to) two extensions. See Second Joint Status Report, Dkt. 52 ("Second JSR") (June 1, 2021); Third Joint Status Report, Dkt. 57 ("Third JSR") (Aug. 13, 2021). As a result, the Presiding Officer amended the discovery schedule twice. See First Amended Scheduling Order, Dkt. 54 (June 9, 2021); Second Amended Scheduling Order, Dkt. 58 (Aug. 16, 2021) (the "operative scheduling order"). The operative scheduling order established a deadline for completing document production by September 3, 2021. *Id.* at 2. Depositions are scheduled to begin on September 20, 2021. *Id.*

IMCC fully complied with the scheduling order, including by providing rolling productions throughout the summer.³ IMCC also reminded Respondents on two separate

² References to "Ex.," "Exs.," or "Golden Decl." are to the Declaration of David Golden in Support of Complainant's Motion to Compel for Sanctions, dated September 7, 2021.

³ IMCC made productions on April 1, 2021 (3 documents, 95 pages); June 11, 2021 (8,098 documents, 31,157 pages) August 27, 2021 (19 documents, 24 pages); and September 3, 2021 (107 documents, 298 pages).

occasions of their representation to IMCC and to the Presiding Officer to make rolling productions. Exs. 2-3. The non-producing Respondents failed to make rolling productions.

At 4:21 PM on September 3, 2021—the document production deadline and the Friday before a Federal holiday—counsel for the non-producing Respondents informed IMCC that they would not comply with the operative scheduling order. Ex. 4. In that message, counsel for two non-producing Respondents (MSC and ZIM) stated that they “expected” to make their productions by September 13, *ten days* after the production deadline and *seven days* before depositions are scheduled to begin. *Id.* Two other non-producing Respondents (COSCO and Wan Hai) have not provided any estimate *at all* for completion. *Id.* These four Respondents *have not produced even a single page* since the April priority productions. In the interests of full disclosure, a summary of the Respondents’ productions in this matter is included in the table below.

Respondents’ Productions

Party	Document Count	Page Count	Date Received
CCM	44	1036	4/2/2021
CMA	11	90	4/2/2021
COSCO	21	107	4/2/2021
EVERGREEN	13	83	4/2/2021
HMM	8	47	4/2/2021
MAERSK	8	104	4/2/2021
MSC	1	1	4/2/2021
OCEMA	346	3384	4/2/2021
ONE	48	304	4/2/2021
WAN HAI	2	56	4/2/2021
YANG MING	17	333	4/2/2021
ZIM	13	126	4/2/2021
Hapag	61	529	4/5/2021
MSC	5	136	4/15/2021
Hapag	220	399	4/22/2021
YANG MING	1	22	5/19/2021
OCEMA	2217	7623	7/9/2021
OCEMA	2927	10127	7/14/2021

CMA	105	452	7/30/2021
HMM	330	3207	7/30/2021
OCEMA	3965	10784	7/30/2021
YANG MING	831	5748	7/30/2021
Hapag	13486	28225	8/3/2021
EVERGREEN	59	445	8/24/2021
ONE	4266	23084	8/26/2021
CMA	8	106	8/27/2021
CCM	66053	153293	8/30/2021
EVERGREEN	3799	27761	9/3/2021
MAERSK	3424	16849	9/3/2021

IMCC immediately objected to the non-producing Respondents’ tactics. Ex. 5. In a final attempt to resolve the issue informally without involving the Presiding Officer, IMCC organized a meet and confer with the non-producing Respondents on September 7, 2021 at 10:00 AM. *Id.*; Golden Decl. ¶ 10. This meet and confer was insufficient to cure the non-producing Respondents’ failure to comply with the operative scheduling order. *Id.* The parties are at impasse, and this motion follows. *Id.*

Motion Respondents’ Counter Statement of the Facts

As will be demonstrated below, Complainant’s motion and the Respondents’ cross-motion that accompanies this opposition could have been avoided. The parties, in good faith, should have been able to resolve or substantially resolve these issues before the filing of dueling emergency applications and cross-motions became necessary. Complainant appears to have been focused on seeking sanctions and costs while repeatedly referencing the concept of prejudice. During the “meet and confer,” Respondents challenged Complainant to articulate what “actual prejudice” would result by the production of documents by four Respondents after the September 3 date and Complainant referenced the upcoming depositions. Counsel for Respondents noted that, even if a jointly requested extension was not granted, there are two months provided in the

schedule for depositions and those four Respondents' representatives could be deposed at the end of the schedule to remove timing pressures. No further response was provided at that time, or in the Motion. Complainant simply noted the obligation to meet and confer was satisfied and that it was proceeding with the Motion. This is not the manner in which practice should be conducted before the FMC.

A. Additional Time Is Needed to Complete the Motion Respondents' Productions

The fourteen Respondents in this proceeding were subject to broad discovery requests that were challenging to address and comply with. This burden on Respondents was exacerbated by the broad search terms imposed by IMCC pursuant to the ESI Stipulation.⁴ This became evident as the search terms were applied to the data provided by each Respondent, which averaged one Terabyte ("TB") for each Respondent. The initial searches, when IMCC's search terms were applied, returned massive numbers of documents which were 70-80% non-responsive.

Counsel could have simply Bates stamped and produced the material which was identified in response to the search terms selected by IMCC's counsel, but this would have resulted in productions of massive quantities of documents of which only a small percentage would have been substantively responsive. Respondents instead employed repeated applications of AI and manual searches that were calculated to narrow the data base of potentially responsive documents. This was followed by exhaustive manual reviews of the remaining data and resulted in the identification and production of responsive documents.

⁴ Pursuant to the ESI Stipulation, Respondents provided search terms they proposed to employ. Simultaneously, IMCC's counsel served far broader terms, which Respondents' counsel agreed to incorporate. See respective April 21, 2021 emails from Respondents' and IMCC's counsel submitting search terms, appended as Exhibit 1 to the Declaration of Christopher Raleigh ("Raleigh Declaration")

IMCC's counsel claims that Respondents did not engage in "rolling productions". That claim is not accurate. As an initial matter, Respondents cooperated with Complainant's request for production of certain categories of "priority" documents and consequently each Respondent produced an initial production of documents on an expedited basis. With respect to further review and production, as searches and reviews of each Respondents' data was completed, the responsive documents were Bates stamped and electronically produced to IMCC's counsel.

These rolling productions were made as follows:

July 13: OCEMA

July 30: Hyundai

July 30: OCEMA

July 30: CMA-CGM

July 30: Yang Ming

August 3: Hapag Lloyd

August 23: Evergreen

August 25: ONE

August 27: CMA-CGM Supplemental Production

August 30: Consolidated Chassis Management

September 2: Maersk

September 2: Evergreen

September 3: Evergreen Supplemental Production

September 3: CMA-CGM Supplemental Production

We are informed that productions by the remaining Motion Respondents, who are the subject of the Motion, were delayed by the following challenges:

- ZIM experienced a number of technical issues that delayed the transmittal of its data, the vast majority of which is stored outside of the United States. In order to comply with privacy and security requirements in a number of jurisdictions, ZIM employs rigorous security procedures and authorizations prior to release of the type of data responsive to the Complainant's Requests for Production. Given the size of the potentially responsive data set, which exceeded one Terabyte, transfer in accordance with privacy and security protocols required encryption of each individual file, transfer to physical media and an internal review / audit of the files to ensure compliance with protocols before the data set could be forwarded to counsel. The review of ZIM's documents is completed and the production is expected to be transmitted today.
- COSCO's servers in the U.S. were the target of a breach which compromised its data. This required that data be obtained from back-up drives in China. COSCO's data has been received and the review and production of this data is expected to be completed within the next week.
- Wan Hai is a small company which, at the times alleged in the Complaint, operates only "in one non-CCM port", specifically Los Angeles and Long Beach. Wan Hai personnel experienced a tremendous increase in operational responsibilities arising from the Covid-19 pandemic. Access to the servers which contained its data was limited by the pandemic and transfer has been further delayed by firewalls designed to protect against breaches. The data is expected to be received by September 16 and, if received on or about that date, we expect the review and production will be completed by the end of next week.
- MSC's data is maintained in servers located in Switzerland and transmittal was delayed due to compliance issues under Swiss privacy laws. The requests were first evaluated by MSC's headquarters in Geneva to determine the legality of compliance under Swiss law, a process which took a considerable period of time. There were also IT issues, because the data was maintained in Geneva and it took time to provide access for the conduct of initial searches from the U.S. and collect the data. Finally, the data collection was a substantial undertaking given the very broad search parameters and the size of the data base. Further delay was encountered because the data became corrupted during electronic transmittal, requiring it to be physically delivered on a hard drive. Given the size of this data base, we expect review and production will be completed during the week of September 27.

In order to complete the productions that had been made through September 2, approximately eight TB of data was searched using the IMCC's terms. Given the issues

described above regarding the outstanding productions, the Motion Respondents request an additional thirty days extension so that this process can be completed.⁵

II. ARGUMENT

Complainant's Statement:

On *the final day* of document discovery, the non-producing Respondents unilaterally altered the operative scheduling order—with no request to the Presiding Officer to modify the schedule or any advance notice to IMCC. Ex. 4 (non-producing Respondents' email). In that message, two non-producing Respondents (MSC and ZIM) proposed finalizing their productions by September 13, *seven days* before depositions begin.⁶ *Id.* Two other non-producing Respondents (COSCO and Wan Hai) have not provided any estimate *at all* for completion. *Id.* These four Respondents *have not produced even a single page* since the April priority productions. Their failure to produce not only violates the Presiding Officer's Second Amended Scheduling Order but also violates their commitment to rolling productions. See First JSR at 2 ("The Parties will produce responsive documents on a rolling basis"); Third JSR at 4 ("Complainant notes that only Respondents OCEMA, CMA, Hapag-Lloyd, HMM, and Yang Ming have made any rolling productions since the June 1 Order."). The non-producing Respondents failed to move the Presiding Officer for a further extension of the Second Amended Scheduling Order. They have provided IMCC no reason for their failure to comply with the

⁵ Motion Respondents will produce the documents as soon as they have been reviewed and Bates stamped. The additional time requested has not delayed depositions: two CCM witnesses have already been scheduled for September 20 and 22 and a Hapag Lloyd witness is scheduled for October 1; however, recognizing that the additional productions may affect other schedules, Motion Respondents propose a reasonable and proportionate extension of the Second Amended Scheduling Order in the accompanying Cross Motion.

⁶ In that same email, Respondents' counsel claims certain deficiencies exist in non-party motor carriers' productions of documents in response to subpoenas. This issue is irrelevant to the subject of this motion. See Golden Decl. ¶ 11.

scheduling order. And they have no excuse for their delay. IMCC first served the document requests on **October 14, 2020**, and the Parties have jointly requested and received two extensions to complete document productions in the initial phase of this proceeding. Golden Decl. ¶ 5; Ex. 1 (service of RFPs); First Amended Scheduling Order; Second Amended Scheduling Order.⁷ As a result, IMCC respectfully requests that the Presiding Officer issue an order compelling the non-producing Respondents to complete their document productions immediately, to pay IMCC’s legal costs associated with this motion, and to require that the non-producing Respondents cure any deficiencies in their productions within three (3) calendar days of notice by email from IMCC.⁸

The Presiding Officer has instructed the Parties that a “scheduling order is not a frivolous piece of paper, idly entered, which can be cavalierly disregarded by counsel without peril.” First Scheduling Order (Mar. 4, 2021) at 2 (citations and quotation marks omitted). Yet the non-producing Respondents have done just that—“cavalierly disregarded” the deadlines set by the Second Scheduling Order without prior consent from the Presiding Officer or timely notice to IMCC.⁹ These actions seriously prejudice IMCC’s ability to depose the non-producing Respondents. IMCC currently has only **thirteen days** before depositions begin, a substantial enough challenge given that there will likely be in excess of 20 depositions during the deposition period, and the non-producing Respondents’ total failure to produce anything at all since April.

⁷ IMCC has not included the text of its discovery requests as required by the Initial Order ¶ 11 because the present dispute concerns non-producing Respondents’ noncompliance with the scheduling order’s timing regarding all of IMCC’s discovery requests, as modified in subsequent negotiations with the Respondents.

⁸ Because the non-producing Respondents have not made *any* productions since April, IMCC cannot yet evaluate if completing depositions will be feasible under the schedule. However, IMCC is proceeding diligently, and has already noticed three depositions for other Respondents.

⁹ IMCC attempted to meet-and-confer with the non-producing Respondents to cure their failure without involving the Presiding Officer—to no avail. See Golden Decl. ¶ 10.

In contrast, IMCC has fully completed its production to Respondents, including rolling productions over the summer, allowing Respondents time to review IMCC's documents. *Supra* n.2. IMCC even repeatedly reminded all Respondents of their commitments to make rolling productions—to which IMCC received no response. Exs. 2-3. IMCC counsel must now waste precious time bringing the matter to the Presiding Officer's attention.

IMCC therefore believes sanctions are warranted against the non-producing Respondents. The Presiding Officer “may make such orders . . . as are just” when a party “fails or refuses to obey an order requiring it . . . to respond to discovery requests,” 46 C.F.R. § 502.150(b). Tribunals have the “inherent powers . . . to manage their own affairs so as to achieve the orderly and expeditious disposition of cases,” including “the ability to fashion an appropriate sanction for conduct which abuses the judicial process.” *Goodyear Tire & Rubber Co. v. Haeger*, 137 S. Ct. 1178, 1186 (2017) (quoting *Chambers v. NASCO, Inc.*, 501 U.S. 32, 44-45 (1991)); 46 C.F.R. § 502.12 (“the Federal Rules of Civil Procedure will be followed to the extent that they are consistent with sound administrative practice”); *cf. also* Scheduling Order (Mar. 4, 2021) at 2 (“The authority of courts to control their dockets is well settled.” (citations omitted)). One permissible sanction is “an assessment of attorney’s fees . . . instructing a party that has acted in bad faith to reimburse legal fees and costs incurred by the other side” in order to compensate for “the sum total of the fees that, except for the misbehavior, would not have accrued.” *Haeger*, 137 S.Ct. at 1186-87.

Sanctions are warranted here. The non-producing Respondents have unilaterally disobeyed the Presiding Officer's operative scheduling order, which required the completion of document production by September 3, 2021. Second Amended Scheduling Order at 2. Yet at the close of business on that deadline, and before a Federal holiday weekend, the non-producing

Respondents informed IMCC *for the first time* that they would not comply with the Order. Ex.

4. Non-producing Respondents failed to confer in good faith with IMCC about their inability to comply with the litigation schedule. This failure to confer timely and in advance was not happenstance; it was a calculated decision by Respondents to gain tactical advantage in the deposition process.

IMCC is clearly prejudiced by the non-producing Respondents' bad faith conduct. The non-producing Respondents' decision to not comply with the Presiding Officer's order denies IMCC the ability to conduct depositions in the order that it chooses and to have the full benefit of all Respondents' productions prior to the deposition period. This prejudice is exacerbated by the fact that two Respondents have provided no estimate at all of their expected dates of production. Had the non-producing Respondents made rolling productions throughout the document discovery period as required, had they completed their productions by the September 3 deadline as required, or had they at least timely notified IMCC of their planned failure to comply with the operative scheduling order with the goal of seeking another extension from the Presiding Officer, IMCC would not be nearly as prejudiced heading into fact depositions, particularly given that there will likely be in excess of 20 depositions during the deposition period.

IMCC incurred attorneys' fees and costs associated with this Motion and the supporting papers only "because of the misconduct at issue." *Haeger*, 137 S.Ct. at 1186. Thus, IMCC respectfully requests an Order requiring the non-producing Respondents to pay IMCC's attorneys' fees and costs to rectify this problem of their own making. Finally, IMCC respectfully requests that the Presiding Officer enter an Order that, after the non-producing Respondents finalize their document productions, they cure any deficiencies within three (3) calendar days of notice by email from IMCC. Given the limited time to complete fact depositions, there simply is

no more time to waste with Respondents' gamesmanship regarding document productions. This remedy is needed to finish the document discovery phase expeditiously.

MOTION RESPONDENTS' ARGUMENTS

I. The Motion Should Be Denied

A. The Motion to Compel Was Unnecessary and Should Therefore Be Denied

46 CFR §502.150 (a)(1) states that "A party may file a motion pursuant to §502.69 for an order compelling compliance...with its discovery requests as provided in this subpart, if...a party fails to respond that inspection will be permitted, or fails to permit inspection, as requested under §502.146 of this subpart."¹⁰ Of equal importance, §502.150 (a)(2)(i) requires "(a) certification that the moving party has conferred in good faith or attempted to confer with the party failing to...respond to discovery requests as provided in this subpart in an effort to obtain compliance without the necessity of a motion". (emphasis supplied)

In this case, the Motion Respondents (as well as all other Respondents) have timely (1) provided Initial Disclosures; (2) served written Responses to Complainant's First Request for Production of Documents; (3) produced Priority Documents¹¹ (4) served Answers to Complainant's Interrogatories; and, (5) served written Responses to Complainant's Second Request for Production of Documents. Consistent with their compliance with all other discovery obligations in this case, the Motion Respondents notified IMCC's counsel in their September 3, 2021 email (Golden Declaration, Exhibit 4), and at the September 7, 2021 "meet and confer" that they would produce responsive documents but needed additional time to do so. During the September 7 conference call, Respondents' counsel's attempts to explain the difficulties

¹⁰ Inspection, as the term is used in this Rule, contemplates the inspection and production of documents as provided for under §502.146.

¹¹ The Scheduling Order, dtd. March 4, 2021 incorporated the Parties' agreement to serve Priority Documents by April 2, 2021.

encountered and provide estimated time frames for the remaining productions were cut short by IMCC's counsel, who uncompromisingly demanded in his September 6, 2021 email, and during the September 7 "meet and confer", that the Motion Respondents produce documents "immediately" (see, Exhibit 5 to Declaration of David Golden, dtd. September 8, 2021).

The Motion was not necessary because the Motion Respondents confirmed that they would make their respective productions – they simply needed more time to do so. This is not behavior which warrants a motion to compel.

Further, §502.150 (a)(2)(i) requires that the moving party "has conferred in good faith....to obtain compliance without the necessity of a motion." The September 7 "meet and confer", contrary to Complainant's implied assertion in the Motion, was not conducted in conformity with the Rules because it was not conducted in good faith. It should be evident that IMCC's counsel scheduled the September 7 "meet and confer" as a mere formality, and as a predicate for the filing of a motion which had already been prepared (the Motion was filed just hours after the September 7 "meet and confer" was concluded).

The very behavior which the Complainant has engaged in has been rejected by the Courts: "When the parties are unable to resolve a discovery dispute, a party may file a motion to compel the opposing party to produce evidence or respond to interrogatories." United States v. Kellogg Brown & Root Servs., Inc., 284 F.R.D. 22, 27 (D.D.C. 2012). However, "[u]nder Federal Rule 37, a party may move for an order compelling disclosure or discovery only after the movant has in good faith conferred or attempted to confer with the person or party. *Id.* (quoting Fed. R. Civ. P. 37(a)(1) (internal quotation marks omitted)).

More importantly, U.S. ex rel. Pogue v. Diabetes Treatment Centers of America, Inc., 235 F.R.D. 521, 529-30 (D.D.C. 2006) (which was cited in *Kellogg*) clarifies that the "meet and

confer” obligation must constitute a sincere effort to resolve the dispute and be conducted in good faith: “The obligation to confer may not be satisfied by perfunctory action, but requires a good faith effort to resolve the non-dispositive disputes that occur in the course of litigation. As such, failure to comply with the conference requirement is a sufficient basis to deny a motion to compel.” *Id* at p. 529.

The September 7 “meet and confer” conducted by Complainant’s counsel was indeed perfunctory, within the meaning of *Pogue, supra* and was patently calculated to enable Complainant’s counsel to simply “check the box” before filing the Motion. “The purposes of the rules—to encourage informal resolution to such disputes, or at least to reduce or narrow the issues the Court will consider—are not well-served by (a party’s) making no effort to confer in the period reasonably prior to filing the motion. It is a waste of this Court’s time and resources to adjudicate a dispute that could have been resolved by the parties themselves.” *Pogue, supra*

The Motion was not necessary because the Motion Respondents were willing to conclude their remaining discovery obligations – they simply needed more time to do so. The Motion should be denied.

B. Sanctions Should Not Be Imposed

Motion Respondents’ confirmation of their willingness to produce documents, and the Complainant’s manifestly perfunctory behavior in the application of the “meet and confer” obligation of §502.150 (a)(2)(i), should provide a sufficient basis to deny Complainant’s request for sanctions. Putting that argument aside, the Rule does not permit the imposition of sanctions as requested by Complainant.

1. Sanctions Are Not Available

§502.150 (a) lays out the criteria and requirements for a motion to compel. The provision for an award of sanctions is found under §502.150 (b), captioned “Failure to comply with order compelling disclosures or discovery.” The Rule goes on to state: “If a party...fails or refuses to obey an order requiring it to make disclosure or to respond to discovery requests, the presiding officer upon his or her own initiative or upon motion of a party may make such orders in regard to the failure or refusal as are just.”

Sanctions should not be imposed in this case because no order has been issued directing the Motion Respondents to “make disclosure or to respond to discovery requests...” For this reason alone, the Complainant’s demand for sanctions is defective because it has “skipped” the step of obtaining an order directing the Motion Respondents to comply (which, as explained above, was not necessary in any event).¹²

2. Attorneys’ Fees Are Not Available Under §502.150 (b)

The sanctions which are available to a moving party are specified in §502.150 (b)(1), (2) and (3). The award of attorneys’ fees, which is the only sanction that the Complainant has sought, are plainly not available under this Rule.

Decisions interpreting the predecessor of the current rule confirm that monetary sanctions are not available under Commission regulations. In *Odyssea Stevedoring of Puerto Rico, Inc. v. Puerto Rico Ports Authority*, 29 S.R.R. 1401 (ALJ 2003), the ALJ denied respondent’s request for attorneys’ fees incurred in connection with preparation for a motion for reconsideration that

¹² This reading of the Commission’s regulations is consistent with past Commission practice. See, e.g., *Universal Logistic Forwarding Co., Ltd – Possible Violations of Sections 10(a)(1) and 10(b)(1) of the Shipping Act of 1984*, 29 S.R.R. 35 and 29 S.R.R. 36 (ALJ 2000). In the first decision, issued on November 21, 2000, the ALJ granted the Bureau of Enforcement’s motion to compel discovery and ordered respondent to produce discovery by December 21, 2000. In the second decision, issued on February 6, 2001, the ALJ imposed sanctions based on respondent’s failure to comply with the earlier order. This indicates that sanctions are imposed only after a party fails to comply with an order granting a motion to compel, not after the initial failure. See also, *Shipman International (Taiwan) Ltd. – Possible Violations of Sections 8, 10(a)(1) and 10(b)(1) of the Shipping Act of 1984 and Part 514*, 28 S.R.R. 100 (ALJ 1998).

respondent alleged was necessary due to purported false statements and misrepresentations on the part of complainant's counsel. The ALJ stated:

The Commission has enacted Rule 210, which authorizes the assessment of sanctions where a party fails to comply with an order to provide discovery. It does not provide for monetary sanctions, but rather, for the striking of pleadings or the preclusion of evidence in certain instances. In that respect, it differs from Fed. R. Civ. P. 37(b)(2), which includes the assessment of monetary sanctions in federal court proceedings.

29 S.R.R. at 1407. What was Rule 210(a) in 2003 can now be found in Rule 150(b) of the Commission's regulations. The current regulation is virtually identical in substance to Rule 210(a), and still does not contemplate the imposition of monetary sanctions in connection with a motion to compel discovery.

In light of the foregoing, Complainant's request for sanctions seeks relief which is not available and must be denied.

III. CONCLUSION

IMCC respectfully requests that the Presiding Officer issue an immediate Order compelling MSC, ZIM, COSCO, and Wan Hai to complete their document productions as quickly as possible. IMCC further respectfully requests that the Presiding Officer issue an Order requiring MSC, ZIM, COSCO, and Wan Hai to pay IMCC's attorneys' fees and costs associated with preparing this Motion and supporting papers, or such other relief as the Presiding Officer believes is warranted. Last, IMCC respectfully requests an Order requiring the non-producing Respondents to cure any deficiencies in their document productions within three (3) calendar days of notice by email from IMCC.

The Motion Respondents respectfully request that the Motion to Compel and for Sanctions be denied.

Dated: September 7, 2021

Respectfully submitted,

/s/ David Golden

W. Stephen Cannon
David D. Golden
Seth D. Greenstein
Richard O. Levine
J. Wyatt Fore
Paulette Rodríguez López
Osob M. Samantar
CONSTANTINE CANNON LLP
1001 Pennsylvania Avenue, NW
Suite 1300N
Washington, DC 20004
Phone: 202-204-3500
scannon@constantinecannon.com

Richard Pianka
American Trucking Associations, Inc.
950 N. Glebe Rd. Ste. 210
Arlington, VA 22203
(703) 838-1889
rpianka@trucking.org

*Counsel for Complainant
Intermodal Motor Carriers Conference of the
American Trucking Associations*

COZEN O'CONNOR

HOLLAND & KNIGHT

By:/s/ Christopher Raleigh

By:/s/ Gerald Morrissey

Counsel for Respondents¹³
Wayne R. Rohde
Christopher Raleigh
Kathryn Sobotta
1200 19th Street N.W., Suite #300
Washington, D.C. 20036
(202) 463-2507

Counsel for Respondent Hapag-Lloyd AG
Gerald Morrissey
Christopher Nolan
800 17th Street N.W., Suite 1100
Washington, D.C. 20006
(202) 469-5497

¹³ Other than Hapag-Lloyd AG and Yang Ming Marine Transport Corporation, and as co-counsel for Evergreen Line Joint Service Agreement.

MANELLI SELTER PLLC

CICHANOWICZ CALLAN KEANE
& DE MAY, LLP

By:/s/ Deana E. Rose

By:/s/ Paul M. Keane

Counsel for Respondent Yang Ming
Marine Transport Corporation
Deana E. Rose
1725 I Street NW.
Washington, D.C. 20006
(202) 261-1016

Co-Counsel for Evergreen Line Joint
Service Agreement, FMC No. 011982
Paul M. Keane
50 Main Street, Suite 1045
White Plains, NY 10606
(212) 344-7042

DATED: September 14, 2021

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 14th day of September, 2021, a true and correct copy of the foregoing (i) Response to Complainant's Motion To Compel Discovery From Respondents MSC Mediterranean Shipping Company S.A., Zim Integrated Shipping Services, COSCO Shipping Lines Co Ltd., and Wan Hai Lines Ltd., And For Sanctions; and (ii) Respondents' Cross Motion For Amendment Of Scheduling Order To Complete Document Production were served via electronic mail on:

W. Stephen Cannon, Esq. (scannon@constantinecannon.com)
David D. Golden, Esq. (dgolden@constantinecannon.com)
Richard O. Levine, Esq. (rlevine@constantinecannon.com)
Seth D. Greenstein, Esq. (sgreenstein@constantinecannon.com)
Osob M. Samantar, Esq. (osamantar@constantinecannon.com)
Justin Wyatt Fore, Esq. (wfore@constantinecannon.com)
Paulette M. Rodriguez-Lopez (prodriguezlopez@constantinecannon.com)
Allison Sheedy, Esq. (sheedy@constantinecannon.com)
Daniel Vitelli, Esq. (dvitelli@constantinecannon.com)
Richard Pianka, Esq. (rpianka@trucking.org)
Counsel for Complainant Intermodal Motor Carriers Conference of the American
Trucking Associations, Inc.

Deana Rose, Esq. (drose@mdslaw.com)
Counsel for Respondent Yang Ming Marine Transport Corporation

Paul Keane, Esq. (pkeane@cckd-ny.com)
Joseph DeMay, Esq. (jdemay@cckd-ny.com)
Co-Counsel for Respondent Evergreen Line Joint Service Agreement, FMC No. 011982

Gerald Morrissey III (Gerald.Morrissey@hklaw.com)
Chris Nolan (chris.nolan@hklaw.com)
Counsel for Respondent Hapag-Lloyd AG

A handwritten signature in black ink, appearing to read "Wayne R. Rohde". The signature is stylized with a large, sweeping "W" and "R".

Wayne R. Rohde